

SENATE BILL 2399

By Yarbro

AN ACT to amend Tennessee Code Annotated, Title 8;
Title 33; Title 36; Title 49; Title 52; Title 56; Title 63
and Title 68, relative to professional counselors.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 8-50-119(b)(1)(A)(i)(a), is amended by deleting the subdivision and substituting:

(a) A licensed professional counselor under title 63, chapter 22, part 1;

SECTION 2. Tennessee Code Annotated, Section 33-1-101(20), is amended by deleting "professional counselor" and substituting "limited practice professional counselor; professional counselor".

SECTION 3. Tennessee Code Annotated, Section 33-3-201(a)(2), is amended by adding "limited practice professional counselor," immediately after "certified or licensed professional counselor,".

SECTION 4. Tennessee Code Annotated, Section 33-6-802, is amended by adding "limited practice professional counselor," immediately after "licensed professional counselor,".

SECTION 5. Tennessee Code Annotated, Section 33-6-804(a), is amended by adding "limited practice professional counselor," immediately after "licensed professional counselor,".

SECTION 6. Tennessee Code Annotated, Section 36-6-413(b)(5)(C)(v), is amended by deleting the subdivision and substituting:

(v) A licensed professional counselor, as defined in § 63-22-122;

SECTION 7. Tennessee Code Annotated, Section 36-6-413(b)(5)(C), is amended by adding the following as a new subdivision:

(ix) A limited practice professional counselor, as defined in § 63-22-122.

SECTION 8. Tennessee Code Annotated, Section 49-2-124(c), is amended by adding the following as a new subdivision:

(10) Limited practice professional counselor.

SECTION 9. Tennessee Code Annotated, Section 52-1-101(14), is amended by deleting "professional counselor" and substituting "limited practice professional counselor, licensed professional counselor".

SECTION 10. Tennessee Code Annotated, Section 52-3-201(a)(2), is amended by adding "limited practice professional counselor," immediately after "certified or licensed professional counselor,".

SECTION 11. Tennessee Code Annotated, Section 56-7-2401(a), is amended by adding "a duly licensed limited practice professional counselor, as defined in § 63-22-122;" immediately after "as defined in § 63-22-115;".

SECTION 12. Tennessee Code Annotated, Section 56-7-2401(a), is amended by adding "by a duly licensed limited practice professional counselor;" immediately after "by a duly licensed marital and family therapist;".

SECTION 13. Tennessee Code Annotated, Section 63-1-125(e)(2), is amended by deleting the subdivision and substituting:

(2) A marriage and family therapist, professional counselor, limited practice professional counselor, or pastoral counselor certified or licensed under chapter 22 of this title;

SECTION 14. Tennessee Code Annotated, Section 63-1-201(2), is amended by adding the following as a new subdivision:

(K) Limited practice professional counselor licensed under chapter 22 of this title.

SECTION 15. Tennessee Code Annotated, Section 63-11-222(b)(4), is amended by deleting the subdivision and substituting:

(4) Has been practicing as a licensed professional counselor or a limited practice professional counselor for a period of six (6) or more years in this state;

SECTION 16. Tennessee Code Annotated, Section 63-11-302(6)(I), is amended by deleting the subdivision and substituting:

(I) Licensed professional counselor or professional counselor candidate;

SECTION 17. Tennessee Code Annotated, Section 63-11-302(6), is amended by adding the following as a new subdivision:

(M) Limited practice professional counselor or a limited practice professional counselor candidate;

SECTION 18. Tennessee Code Annotated, Section 63-11-409(b), is amended by deleting subdivisions (3) and (4) and substituting:

(3) A limited practice professional counselor under chapter 22 of this title;

(4) A licensed professional counselor under chapter 22 of this title;

SECTION 19. Tennessee Code Annotated, Section 63-22-102, is amended by deleting subdivisions (2) and (4) and substituting:

(2) Upon payment of a nonrefundable fee as set by the board, review the credentials of licensure of a limited practice professional counselor and professional counselor applicant to determine if the applicant is eligible for licensure;

(4) License an applicant who meets the requirements in this part for a licensed professional counselor or limited practice professional counselor and establish by rule any additional qualifications of the applicant necessary for the practice of counseling as provided in this part;

SECTION 20. Tennessee Code Annotated, Section 63-22-104, is amended by deleting "professional counselor" and substituting "limited practice professional counselor".

SECTION 21. Tennessee Code Annotated, Section 63-22-104, is amended by designating the existing language as subsection (a) and adding the following as a new subsection:

(b) An applicant for licensure as a professional counselor shall comply with all requirements described in subsection (a) and shall meet the following requirements:

(1) Complete coursework specifically related to the diagnosis, treatment, appraisal, and assessment of mental disorders; and

(2) Complete two (2) years of postgraduate supervised experience required for licensure in a clinical setting that provides substantial opportunities to diagnose, treat, appraise, and assess mental disorders.

SECTION 22. Tennessee Code Annotated, Section 63-22-107, is amended by deleting the section and substituting:

(a) Beginning July 1, 2026, an applicant for licensure as a limited practice professional counselor and a professional counselor shall:

(1) Meet the requirements of §§ 63-22-104 and 63-22-110; and

(2) Pass an examination as adopted and administered by the board.

(b) A person who was certified as a professional counselor on or before June 30, 1991, may retain the person's certification indefinitely by meeting current renewal requirements or upgrade to be licensed as a limited practice professional counselor.

(c)

(1) A person who is a licensed professional counselor as of June 30, 2026, must be converted to a limited practice professional counselor license.

(2) The board shall reissue the person as described in subdivision (c)(1) a limited practice professional counselor license.

(d)

(1) Beginning July 1, 2028, the board shall not issue a new license for a limited practice professional counselor.

(2) A person who is a licensed limited practice professional counselor as of June 30, 2028, may retain the person's license indefinitely by meeting current renewal requirements or upgrade to be licensed as a licensed professional counselor by meeting the additional requirements as described in § 63-22-104(b).

(e)

(1) Beginning July 1, 1991, an applicant for licensure as a licensed marital and family therapist shall:

(1) Meet the requirements of § 63-22-103(a) or § 63-22-106; and

(2) Pass such examinations as may be administered by the board.

(2) Beginning July 1, 1991, the board shall not issue marital and family therapist certifications. A person certified as a marital and family therapist on or before June 30, 1991, may maintain certification or upgrade from certification to licensure by any of the following methods:

(A) By acquiring the minimum standards provided in § 63-22-106(3);

(B) By receiving two hundred (200) hours clinical supervision from not more than two (2) supervisors deemed qualified by the board; or

(C) By validating fifteen (15) years of clinical practice while maintaining certification by continuing a practice of marital and family therapy.

SECTION 23. Tennessee Code Annotated, Section 63-22-116(a)(1), is amended by deleting "a professional counselor" and substituting "a limited practice professional counselor or licensed professional counselor".

SECTION 24. Tennessee Code Annotated, Section 63-22-116(a)(1)(B), is amended by deleting the subdivision and substituting:

(B)

(i) The applicant has a conferred graduate degree consisting of a minimum of fifty-two (52) hours in counseling or a related field from an accredited program that were earned prior to 2016; and

(ii) The applicant has practiced as a licensed professional counselor or a limited practice professional counselor for a minimum of twenty-five (25) years and meets the requirements of § 63-22-104(a)(4)-(7).

SECTION 25. Tennessee Code Annotated, Section 63-22-116(a)(2), is amended by deleting the subdivision.

SECTION 26. Tennessee Code Annotated, Section 63-22-117(a)(1)(A), is amended by deleting "such as, "licensed professional counselor" without being" and substituting "such as, "licensed professional counselor" or "limited practice professional counselor" without being".

SECTION 27. Tennessee Code Annotated, Section 63-22-117(b), is amended by deleting the subsection and substituting:

(b) This part does not permit a person licensed or certified as a professional counselor or limited practice professional counselor to engage in the practice of licensed psychological examiner, licensed senior psychological examiner, certified psychological

assistant, licensed psychologist, licensed social worker, psychiatric nurse, law, or medicine.

SECTION 28. Tennessee Code Annotated, Section 63-22-117(c), is amended by deleting the subsection and substituting:

(c) This part does not apply to a person if the person is preparing for the practice of counseling.

SECTION 29. Tennessee Code Annotated, Section 63-22-117(d), is amended by adding "or limited practice professional counselors" immediately after "licensed professional counselors".

SECTION 30. Tennessee Code Annotated, Section 63-22-118(a), is amended by deleting the subsection and substituting:

(a) Notwithstanding § 63-22-122, this part does not apply to the following:

(1) A person regulated by the board of nursing or the state board of education; or

(2) A professional counselor employed in a community or human service agency and working directly under the supervision of a licensed professional counselor or a limited practice professional counselor.

SECTION 31. Tennessee Code Annotated, Section 63-22-120, is amended by deleting the section.

SECTION 32. Tennessee Code Annotated, Section 63-22-121(a)(1), is amended by deleting the subdivision and substituting:

(1) An associate license may be issued by the board for a licensed professional counselor or a limited practice professional counselor applicant who has completed the academic coursework and training required for the license sought and who has successfully passed the examination required by the board.

SECTION 33. Tennessee Code Annotated, Section 63-22-122, is amended by deleting subdivisions (3) and (5) and substituting:

(3) "Limited practice professional counselor":

(A) Means a person licensed under this part who is professionally trained in counseling and guidance services designed to facilitate normal human growth and development through individual, family, or group counseling; who is professionally trained in educational procedures, assessment, consultation, and research; and who assists individuals by the practice of counseling with their personal, social, career, or educational development as they pass through life stages; and

(B) Does not include the ability to appraise, assess, diagnose, or treat conditions attributable to a mental disorder;

(5)

(A) "Licensed professional counselor" means a person licensed under this part:

(i) Who is professionally trained in counseling and guidance services designed to facilitate normal human growth and development through individual, family, or group counseling; who is professionally trained in educational procedures, assessment, consultation, and research; and who assists individuals by the practice of counseling with their personal, social, career, or educational development as they pass through life stages; and

(ii) The application of mental health and human development principles in order to:

(a) Facilitate human development and adjustment throughout the life span;

(b) Prevent, diagnose, and treat mental, emotional, or behavioral disorders and associated disorders that interfere with mental health;

(c) Conduct assessments and diagnoses for the purpose of establishing treatment goals and objectives within the limitations prescribed in subdivision (1); and

(d) Plan, implement, and evaluate treatment plans using counseling treatment interventions.

(B) This subdivision (5) does not permit:

(i) The performance of any act that a licensed professional counselor is not educated and trained to perform; or

(ii) The designation of testing reports as psychological.

(C) As used in this subdivision (5), "counseling treatment interventions" means the application of cognitive, affective, behavioral, and systemic counseling strategies that include principles of development, wellness, and pathology that reflect a pluralistic society.

SECTION 34. Tennessee Code Annotated, Section 63-22-206(a)(4), is amended by deleting "a professional counselor designated as a mental health service provider" and substituting "a licensed professional counselor".

SECTION 35. Tennessee Code Annotated, Section 63-32-102(b), is amended by deleting "professional counselor" and substituting "limited practice professional counselor, licensed professional counselor".

SECTION 36. Tennessee Code Annotated, Section 68-24-604, is amended by adding "limited practice professional counselor," immediately after "licensed professional counselor,".

SECTION 37. This act takes effect July 1, 2026, the public welfare requiring it, and applies to licenses applied for or renewed on or after that date.